

C A P. VII.

The Court of Kings Bench, *coram Rege.*

Lib. 3. cap. 7.
fa. 105. b.

fa. 108. a.

• Nota.

• A greater prohibition.

Libet niger in
Scaccario, cap. 4.

• Note this word
• See Britton,
f. 1. speaking
of the king, Et
pur ceo que nous
ne sçissions in
cuisse proper per-
son a s'ier & ter-
miner touts querels
del peuple. Avo-
nus partie nostre
e charge en plusieurs
partis come est or-
daine, &c.

20 E. 3. cap. 1.

• Stat de Marl.

52 H. 3. ca. 1.

Vi. 4 H. 4.

ca. 22.

• 24 H. 3. cap. 2.

in effect.

• Bract. lib. 1.

ca. 5. fol. 3. b.

• 20 E. 3. cap. 1.

speaking in the

king's person.

BRAC^TON doth make in few words a notable expression of this court. *Habet rex plures curias in quibus diversæ actiones terminantur, et illarum curiarum habet unam propriam, sicut aulam regiam, et justiciarios capitales qui proprias causas regias terminant, et aliorum omnium, per querelam, vel per privilegium, sive libertatem.* And soon after speaking of the justices of this court saith: *Item justiciariorum quidam sunt capitales, generales, perpetui, et majores à latere regis residentes, qui omnium aliorum corrigere tenentur injurias, et errores.*

And Britton saith: *In droit des justices que sont assignes de nous s'ier et tener nostre lieu ou q. nous seons en Anglitterre. • Voilons que eux ciant comusans de amender faux judgements et de terminer appeales et auters trespasses faitz encontre nostre peace, et * enconter nostre jurisdiction, et leur record se esteant solong; ceo que nous manderons per nostre bre.*

Fleta in describing this court saith: *Habet et rex curiam suam et justiciarios suos tam milites quam clericos locum suum tenentes in Anglia, coram quibus, et non alibi nisi coram semetipso et concilio suo vel auditoribus specialibus falsa judicia et errores justiciariorum revertuntur et corriguntur: ibidem etiam terminantur brevvia de appellis, et alia brevvia super actionibus criminalibus et injuriarum contra pacem regis illatarum impetrata, et omnia, in quibus continetur ubi tunc fuerimus in Anglia.*

In the Black Book of the exchequer, it is thus said of the chief justice of this court: *capitalis justitia præsidet primus in regno.* Out of these three ancient authors we observe these six conclusions.

First, where Bracton saith, *Habet rex plures curias in quibus diversæ actiones terminantur*; hereby, and in effect by ^a Britton, and this conclusion followeth, that the king hath committed and distributed all his whole power of judicature to severall courts of justice, and therefore the judgement must be *ideo consideratum est per curiam.* And herewith do agree divers acts of parliament and book cases, some whereof, for illustration, we will briefly remember; and leave the judicious reader to the rest.

^b *Provisum, concordatum et concessum est, quod tam majores, quam minores justitiam habeant et recipiant in curia domini regis.* ^c That the lawes ecclesiasticall and temporall were and yet are administred, adjudged, and executed by fundry judges, &c. ^d *Expedit etiam magistratus reipublicæ constitui, quia per eos qui juredicendo præsumt effectus rei accipitur; parum enim jus in civitate esse, nisi sint qui possunt jura gerere.*

^e For the pleasure of God and quietnesse of our subjects as to save our conscience, and to keep our oath, by the assent of our great men and other of our counsell, we have commanded our justices, that they shall from henceforth do even law and execution of right to all our subjects, rich and poor, without having regard to any person, without letting to do right for any letters or com-

mandement